

SENATE No. 2172

The Commonwealth of Massachusetts

PRESENTED BY:

Paul W. Mark

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act modernizing municipal procurement.

PETITION OF:

NAME:

Paul W. Mark

DISTRICT/ADDRESS:

*Berkshire, Hampden, Franklin and
Hampshire*

SENATE No. 2172

By Mr. Mark, a petition (accompanied by bill, Senate, No. 2172) of Paul W. Mark for legislation to increase the threshold for requiring formal bidding processes for governmental bodies, including municipalities and regional school districts. State Administration and Regulatory Oversight.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act modernizing municipal procurement.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 7. Section 4 of chapter 30B of the General Laws, as so appearing, is amended
2 by striking out subsection (a) and inserting in place thereof the following subsection:-

3 (a) Except as permitted pursuant to this section and section 7, for the procurement of a
4 supply or service for a governmental body in the amount of \$10,000 or greater, but not to exceed
5 \$100,000, a procurement officer shall seek written quotations from not fewer than 3 persons
6 customarily providing the supply or service. The procurement officer shall record the: (i) names
7 and addresses of all persons from whom quotations were sought; (ii) purchase description used
8 for the procurement; (iii) names of the persons submitting quotations; and (iv) date and amount
9 of each quotation. Such information shall be retained in the file required pursuant to section 3. A
10 governmental body may require that any procurement for the governmental body in an amount of
11 not more than \$100,000 shall be subject to section 5 or section 6.

12 SECTION 8. Section 5 of said chapter 30B, as so appearing, is hereby amended by
13 striking out, in lines 2 to 4, the words “\$50,000 or, in the case of a municipal or regional school
14 district, award of procurement contracts in the amount of more than \$100,000,” and inserting in
15 place thereof the following word:- \$100,000.

16 SECTION 9. Said section 5 of said chapter 30B, as so appearing, is hereby further
17 amended by striking out, in lines 37 to 39, the words “on the COMMBUYS system administered
18 by the operational services division” and inserting in place thereof the following words:- through
19 additional means reasonably calculated to notify the public of the opportunity.

20 SECTION 10. Said section 5 of said chapter 30B, as so appearing, is hereby further
21 amended by striking out, in lines 40 and 41, the words “\$50,000, or, for a municipal or regional
22 school district, more than”.

23 SECTION 11. Section 6 of said chapter 30B, as so appearing, is hereby amended by
24 striking out, in lines 2 and 3, the words “\$50,000, or, a municipal or regional school district,
25 more than \$100,000” and inserting in place thereof the following word:- \$100,000.

26 SECTION 12. Section 6A of said chapter 30B, as so appearing, is hereby amended by
27 striking out, in lines 2 and 3, the words “\$50,000, or, a municipal or regional school district,
28 more than \$100,000,” and inserting in place thereof the following word:- \$100,000.

29 SECTION 13. Section 7 of said chapter 30B, as so appearing, is hereby amended by
30 striking out, in lines 2 and 3, the words “\$50,000, or, a municipal or regional school district,
31 more than \$100,000,” and inserting in place thereof the following word:- \$100,000.